

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Date Filed:
Index No.

-----X
MICHAEL WILLIAMS

Plaintiff designates New York
County as place of trial based on
Place of incident

Plaintiffs,

-against-

SUMMONS

THE CITY OF NEW YORK, P.O. DANIEL DONGVORT
Shield No. 3219, JOHNPAUL GIACONA, Shield No.9996

Defendant
-----X

TO THE ABOVE NAMED DEFENDANT:

You are hereby summoned and required to serve upon plaintiff's attorneys an answer to the complaint in this action within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
November 22, 2017



YALKUT & ISRAEL
Attorneys for Plaintiffs
2139 Williamsbridge Road
Bronx, New York 10461
718-292-2952

Defendants' Name and Address:

City of New York - 100 Church Street, N.Y., N.Y. 10007

P.O.s Dongvort & giacona - 1 Police Plaza, N.Y., N.Y

Notice: The nature of this action is false arrest, false imprisonment, civil rights violations, negligence.

The Relief sought is Money damages

Upon your failure to appear, judgement will be taken against you by default in a sum within the jurisdictional limits of the Supreme Court and more than the jurisdiction of all inferior Courts.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MICHAEL WILLIAMS,

Plaintiff,

-against-

VERIFIED COMPLAINT

INDEX NO

THE CITY OF NEW YORK, P.O. DANIEL
DONGVORT, Shield No. 3219 and P.O.
JOHNPAUL GIACONA, Shield No. 9996
Defendants.

Plaintiff, as and for his/her Verified Complaint, by his/her attorney(s), Yalkut & Israel,
allege the following upon information and belief;

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK
(hereinafter referred to as "CITY") was a municipal corporation duly organized and
existing pursuant to the laws of the State of New York.
2. A notice of claim was served upon defendant, "CITY", within ninety(90) days of the
occurrence and/or accrual of the cause of action.
3. More than thirty(30) days have elapsed since presentation of said claim, and defendant,
"CITY", has failed to adjust and /or dispose of the claim presented therein.
4. This action is commenced within one year and ninety days of the date of the incident
and/or accrual of the cause of action.
5. That at all times hereinafter mentioned, defendant, "CITY", owns the "NEW YORK
CITY POLICE DEPARTMENT", (hereafter referred to "POLICE"), as a subsidiary;
6. That at all times hereinafter mentioned, defendant, "CITY", maintains the "POLICE";
7. That at all times hereinafter mentioned, defendant, "CITY", manages, operates and
controls the " POLICE";

8. That at all times hereinafter mentioned, defendants, P.O. Daniel Dongvort, Shield No. 3219. and P.O. Johnpaul Giacona are employed by the "POLICE" of the defendant, "CITY";

FIRST CAUSE OF ACTION-FALSE IMPRISONMENT:

9. The Plaintiff repeats and re-iterates each and every allegation of the complaint herein numbered 1-8, as though same were fully set forth herein;
10. On November 21, 2015 at approximately 8:00 pm of that day, plaintiff was lawfully at or near the intersection of 9th Avenue and West 17th Street, County, City and State of New York, when members of the "POLICE" of the defendant, "CITY", responded to said location.
11. Plaintiff was lawfully at said location. Two officers got out of an unmarked vehicle. One of the officers demanded that the Plaintiff raise his hand. The Plaintiff complied and was immediately struck in the face and slammed him onto the unmarked vehicle by an officer. Prior to being taken into the 10th Precinct, the defendants slammed the Plaintiff's head into the wall.
12. Plaintiff was falsely imprisoned at both the scene of the occurrence and continuing thereafter at the 10th Precinct, where he remained for approximately four (4) hours and thereafter at Central Booking, where he remained for approximately seven (7) hours, the Criminal Court, after which he was sent to Riker's Island Correctional Facility, where he remained for approximately one (1) week;
13. As a result of the aforementioned, the Plaintiff suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
14. Plaintiff intends to claim punitive damages for all of the causes of action interposed

herein.

15. The criminal action against the Plaintiff was disposed of as follows: Case dismissed January 4, 2017 by request of the Assistant District Attorney
16. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SECOND CAUSE OF ACTION-FALSE ARREST

17. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "16" herein as if more fully set forth at length:
18. The Plaintiff was, without cause or provocation, falsely arrested.
19. As a result of the foregoing, the Plaintiff suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
20. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
21. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

THIRD CAUSE OF ACTION-MALICIOUS PROSECUTION

22. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "21" herein as if more fully set forth at length:
23. Defendants maliciously prosecuted criminal charges against the Plaintiff, as a proper investigation would have revealed the charges to be false and unfounded and on January 4, 2017 the charges were dismissed.

24. As a result of the foregoing, the Plaintiff suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
25. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
26. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

FOURTH CAUSE OF ACTION-NEGLIGENT TREATMENT:

27. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "26" herein as if more fully set forth at length:
28. At the aforementioned time and place, the Plaintiff was negligently treated by various police officers employed by the defendant, "CITY" and they were acting within the scope of their authority and with the knowledge and the approval of their employers.
29. As a result of the foregoing, the plaintiff suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
30. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
31. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

FIFTH CAUSE OF ACTION-BATTERY

32. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "31" herein as if more fully set forth at length.

33. At the aforementioned time and place, the Plaintiff was battered by defendants without any provocation on the part of the Plaintiff as a police officer punched the Plaintiff in the face and thereafter slammed the Plaintiffs head into a wall.
34. As a result of the aforementioned, the Plaintiff sustained emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
35. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
36. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SIXTH CAUSE OF ACTION-INVASION OF PRIVACY:

37. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "36" herein as if more fully set forth at length:
38. The aforementioned occurrence constituted an invasion of the privacy of the Plaintiff.
39. As a result of the foregoing, the Plaintiff sustained emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
40. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein
41. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SEVENTH CAUSE OF ACTION-CIVIL RIGHTS VIOLATION:

42. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1"

through "41" herein as if more fully set forth at length:

43. As a result of the aforementioned occurrence, the Plaintiff was deprived of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances statutes, codes and rules, including but not limited to 42 USC §1981, §1983, §1985 and 28 USC § 1343.

Defendants arrested and incarcerated the plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well being, safety and constitutional rights.

44. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs , policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department., all under the supervision of ranking officers of said department.

46. . The aforementioned customs, policies. usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a) fabricating evidence against innocent persons erroneously arrested
- b) arresting innocent persons wrongfully apprehended
- c) arresting innocent persons notwithstanding the existence of

credible evidence which exonerates the accused of any
criminal wrongdoing

47. The existence of the aforesaid unconstitutional customs and policies may be
inferred from repeated occurrences of similar wrongful conduct. as documented in
the following civil rights actions filed against the City of New York:

- **Frank Douglas v. City of New York.**, United States District Court

Southern District of New York, 03 CV 6475;

Darnell Flood v. City of New York., United States District Court Southern

District of New York. 03 CV 10313;

Theodore Richardson v. City of New York. et al., United States District Court,

Eastern District of New York, 02 CV 3651;

Phillip Stewart v. City of New York., United States District Court, Southern

District of New York, 05 CV 2375;

Benjamin Taylor v. City of New York., United States District Court. Eastern

District of New York, 01 CV 5750;

Angel Vasquez v. City of New York., United States District Court, Eastern

District of New York, 05 CV 3552;

- **Alvin ,Williams v. City of New York.**, United States District Court, Southern

District of New York.. 05 CV 4013:

Terrence Burton v. City of New York., United States District Court,

District of New York, 06 CV 6884.

48. The foregoing customs, policies. usages, practices, procedures and rules of the
City of New York and the New York City Police Department constituted a deliberate

indifference to the safety', well-being and constitutional rights of plaintiff

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations as alleged herein
50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.
51. As result of the foregoing custom, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was incarcerated unlawfully for approximately one week.
52. Defendants, collectively and individually, while acting under color of State Law, were directly and actively involved in violating the constitutional rights of plaintiff,
53. Defendants, collectively and individually, while acting under color of State Law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
54. All of the foregoing acts by the defendants deprived the plaintiff of federally protected rights, including but not limited to:
 - A. Not to be deprived of liberty without due process of law.
 - B. To be free from seizure and arrest not based upon probable cause.
 - C. To be free from unwarranted and malicious criminal prosecution.
 - D. Not to have cruel and unusual punishment imposed upon him/her; and
 - E. To receive equal protection under the law.
55. The plaintiff intends to seek punitive damages on all counts.

56. As a result of the foregoing, the Plaintiff suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
57. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
58. As a result of the foregoing, the Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

EIGHTH CAUSE OF ACTION-NEGLIGENCE

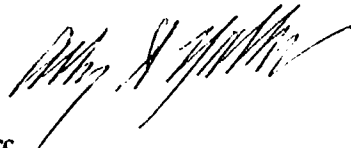
59. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "58" herein as if more fully set forth at length:
60. The aforementioned occurrence took place by reason of the negligence of defendants, its agents, servants and/or employees, including various police officers.
61. As a result of the foregoing, Plaintiff, suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
62. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
63. As a result of the foregoing, plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

WHEREFORE, the plaintiff seeks damages in each cause of action, in a sum within Jurisdictional limits of The Supreme Court of the State of New York and in excess of the jurisdictional limits of all inferior Courts.

Dated :Bronx, New York

November 22, 2017

Yalkut & Israel Esqs.
Attorneys for Plaintiff
2139 Williamsbridge Road
Bronx, New York 10461
(718) 292-2952



INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss.
COUNTY OF BRONX)

The undersigned, being duly sworn, deposes and says that the deponent is the defendant in the within action; that deponent has read the foregoing summons and complaint and knows the contents thereof; that the same is true to deponent's own knowledge; except as those matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

x 
Michael Williams

Sworn to before me this 11th
day of December 2017

NOTARY PUBLIC

CURITY JEFFREY
Notary Public, State of New York
No. 01JE614752
Qualified in Bronx County
Commission Expires Feb. 27, 2018

**LAW OFFICES
OF
YALKUT & ISRAEL
2139 Williamsbridge Road
Bronx, New York 10461**

(718) 292-2952

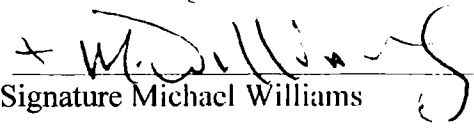
**DESIGNATION OF AGENT FOR ACCESS TO SEALED
RECORDS PURSUANT TO NYCPLR 160.50(1)(d)**

I Michael Williams Date of Birth April 24, 1960 SS# [REDACTED] pursuant to NYCPLR 160.50(1)(d), hereby designates ZACHARY W. CARTER Corporation Counsel of the City of New York or his authorized representative, as my agent to whom records of the criminal action terminated in my favor entitled People of the State of New York v. Michael Williams, Docket No. 2015NY075848 in the Criminal Court, County of New York, State of New York, relating to my arrest on or about November 21, 2015 may be made available for use in the Civil Action Michael Williams v The City of New York et al

I understand that until now the aforesaid records have been sealed pursuant to CPLR 160.50, which permits those records to be made available only (1) to persons designated by me, or (2) to certain other parties specifically designated in the statute.

I further understand that the person designated by me above as a person to whom the records may be made available is not bound by the statutory sealing requirements of CPLR 160.50.

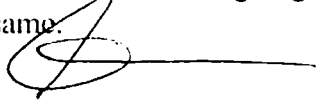
The records to be made available to the person designated above comprise all records and papers relating to my arrest and prosecution in the criminal action identified herein on file with any court, police agency, prosecutor's office or state or local agency that were ordered to be sealed under the provisions of CPLR 160.50.


Signature Michael Williams

STATE OF NEW YORK
COUNTY OF BRONX

On this ^{11th} ~~November~~ ^{December}, 2017, before me personally came Michael Williams to me known and known to me to be the individual described in and who executed to foregoing instrument and he/she acknowledged to me that he executed the same.

CURITY JEFFREY
Notary Public, State of New York
No. 01JE814752
Qualified in Bronx County
Commission Expires Feb. 27, 2018


NOTARY PUBLIC

SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF NEW YORK
 MICHAEL WILLIAMS

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. DANIEL DONGVORT, Shield No. 3219
 Defendants.

SUMMONS and COMPLAINT

YALKUT & ISRAEL
 Attorneys for Plaintiff(s)
 865-B Walton Avenue
 Bronx, New York 10451
 718 292-2952
 718 993-1542 (Fax)

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated:

November 22, 2017

Signature:

Print Signature Name:

[Handwritten Signature]
 ARLO S. YALKUT

TO:

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTE

that the within is a (certified copy of a
 entered in the Office of the Clerk of the within named court on 20
 that an order of which the within is a true copy will be presented for settlement
 to the Hon. , one of the judges of the within named court,
 on , 20 , at M.

YALKUT & ISRAEL
 Attorneys for Plaintiff(s)
 865-B Walton Avenue
 Bronx, New York 10451
 (718) 292-2952